

26CHUD00501 26CHUD00501

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF43%2C07%2F14%2F2026

Source SHA-256: fe325e430c29c41732d86919b915696d695dffa361afc392a712939242f67508

Case Number: 26CHUD00501 Hearing Date: July 14, 2026 Dept: F43

Dept. F43

Hearing Date: 07-14-26

Case # 26CHUD00501, Equity

Residential Management, LLC v. Carr, et al.

Trial Date: None set.

MOTION FOR LEAVE TO
FILE A DEMURRER

MOVING PARTY: Defendant LaTonya Carr, in pro per

RESPONDING PARTY: Plaintiff Equity Residential Management, LLC

RELIEF REQUESTED

Order granting defendant LaTonya Carr leave
to file a demurrer.

RULING: Motion is denied.

SUMMARY OF ACTION

Plaintiff Equity Residential Management, LLC

(Plaintiff) filed this unlawful detainer action against defendants Trevor Carr,
LaKeithia Terry, LaTonya Carr, Cesar Javier Sanchez Alonso, and Lisa Smith on

April 30, 2026. Plaintiff is a lessor as agent for the owner of property located at 18420 Oak Canyon Road, Apartment 510 in Santa Clarita, CA 91387 (the Premises).

Defendant tenants have failed to pay rent due under a lease agreement for the Premises. Plaintiff seeks forfeiture of a residential lease agreement, reasonable attorneys' fees, and damages of past-due rent (\$3,085) and holdover rent at a daily rate of \$103.80.

On May 21, 2026, defendant LaTonya Carr specially appeared and filed a motion to quash service of the summons and complaint. The court denied the motion on June 3, 2026 and gave Plaintiff five days from that date (June 8, 2026) to file an answer. (6/03/26 Minute Order.)

Ms. Carr did not file an answer or any other responsive pleading by June 8, 2026.

On June 10, 2026, Ms. Carr filed the instant motion for leave to file a demurrer instead of an answer. Carr filed an amended motion on June 11, 2026.

On July 6, 2026, defendant Cesar Javier Sanchez Alonso filed a notice of stay of proceedings, indicating he is currently a debtor in an active Chapter 13 bankruptcy case. (7/06/26 Notice of Stay of Proceedings.) This matter was placed in a stay that same day.

On July 8, 2026, Plaintiff filed an opposition to Ms. Carr's motion for leave to file a demurrer.

No reply was filed.

SUMMARY OF ARGUMENTS

Defendant LaTonya Carr (Carr) contends the court had no right to restrict her right to a responsive pleading to an answer because in unlawful detainer cases, a demurrer is an equally permissible responsive pleading. The deadline for Carr to file a responsive pleading is five days from written notice of the entry of the order plus five additional days if notice is served by mail. Any default or default judgment entered

before the expiration of Carr's time to file a responsive pleading is void and subject to reversal.

In opposition, Plaintiff claims the bankruptcy stay precludes further proceedings in this matter. If the stay is lifted, Plaintiff contends the court should deny Ms. Carr's motion because her cited authorities address whether a default entered before expiration of a defendant's time to respond is valid. According to Plaintiff, no such circumstances exist here. Carr has filed neither an answer nor a demurrer. Plaintiff agrees that Carr has a statutory right to demur. The issue is whether the court should exercise its discretion to grant Carr leave to file a demurrer where Ms. Carr has filed no responsive pleading and instead seeks "a prospective order confirming her right to demur." Ms. Carr's cited authorities addresses do not address this question.

REQUESTS FOR JUDICIAL NOTICE

Defendant Carr asks the court to take judicial notice of the following documents pursuant to Evidence Code sections 452 and 453:

.

Ruling entered on October 16, 2017 by the Appellate Division of the Los Angeles County Superior Court in Van Butenschoen v. Cynthia Flaker (2017) 16 Cal.App.5th Supp. 10, Case No. BV031862; and

.

This court's Minute Order denying defendant LaTonya Carr's Motion to Quash Service of the Summons and Complaint, entered on June 3, 2026.

The court grants the request pursuant to Evidence Code section 452, subdivisions (c) and (d).

ANALYSIS

A. Defendant Sanchez's Bankruptcy Stay applies only to claims pertaining to him.

When a bankruptcy petition is filed, an automatic stay arises immediately and stays the commencement or continuation of any judicial action or proceeding against the bankruptcy debtor. (11 U.S.C. § 362(a)(1).) The critical language is the bankruptcy code's reference to "the debtor," meaning the "person or municipality concerning which a [bankruptcy] case [has been commenced]." (11 U.S.C. 101(13).) California courts and federal courts applying California law have uniformly interpreted this statutory language to mean that the automatic stay protects only the debtor and does not extend to non-debtor co-defendants. (Higgins v. Superior Court (2017) 15 Cal.App.5th 973, 981-983; In re Miller (9th Cir. BAP 2001) 262 B.R. 499, 505-506.) "[T]he bankruptcy of one defendant does not normally stay the case as to non-debtor defendants absent unusual circumstances," and only the bankruptcy court may extend the automatic stay to a non-debtor party. (Totten v. Kellogg Brown & Root, LLC (2016) 152 F.Supp.3d 1243, 1267-1268.)

Because Plaintiff does not present an order from the bankruptcy court extending the automatic stay to the other defendants in this matter, Plaintiff's "bankruptcy stay" argument fails.

B. Although the court's order limited Ms. Carr's responsive pleading to an "answer," Ms. Carr's instant motion was filed without cite a proper procedural basis and is untimely because it was filed two days after the June 8, 2026 deadline.

As an initial matter, Plaintiff fails to cite a valid procedural basis for her motion. The court still addresses the merits of the moving papers.

"On or before the day fixed for their appearance, the defendant may appear and answer, demur, or move to strike any portion of the complaint." (Code Civ. Proc., § 1170, subd. (a).) "[F]ollowing the denial of a motion to quash, a court cannot order a defendant to file only an answer. Such an order is improper because the statutes do not limit the defendant's responsive pleading to an answer, and a demurrer is an acceptable responsive pleading." (Butenschoen v. Flaker (2017) 16 Cal.App.5th Supp. 10, 15.)

The language of the court's June 3, 2026, Minute Order limits

Ms. Carr's responsive pleading to an answer.

(6/03/26 Minute Order at p. 5.)

As such, Ms. Carr was entitled to file an acceptable responsive pleading whether an answer or demurrer.

"Notwithstanding any other provision of law, in any action under this chapter: . . . The service and filing of a notice of motion under subdivision (a) shall extend the defendant's time to plead until five days after service upon him of the written notice of entry of an order denying his motion, except that for good cause shown the court may extend the defendant's time to plead for an additional period not exceeding 15 days." (Code Civ. Proc., § 1167.4, subd. (b).)

Ms. Carr contends the responsive deadline was extended by five days pursuant to Code of Civil Procedure section 1013's five-day extension for mail. However, Section 1167.4's inclusion of the phrase "Notwithstanding any other provision of law," signals a legislative intent to displace general procedural rules — including section 1013 — within the summary unlawful detainer context. (Highland Plastics, Inc. v. Enders (1980) 109 Cal.App.3d Supp. 1, 7-12 [reasoning legislature intended to maintain the summary nature of unlawful detainer actions].)

Furthermore, Ms. Carr was required to file a responsive pleading five calendar days from service of notice of the ruling not five court days. California authority establishes that unqualified references to "days" in statutory language means calendar days, rather than "court days." (Iverson v. Superior Court (1985) 167 Cal.App.3d 544, 548.)

The Clerk's Certificate of Mailing indicates the notice of the Minute Order was mailed to defendant Carr the day it was entered, June 3, 2026. (6/03/26 Certificate of Mailing.) Therefore, Ms. Carr's filing deadline was five days later: June 8, 2026.

Ms. Carr failed to file a responsive pleading or the instant motion by the June 8, 2026, deadline.

Because Ms. Carr's motion is untimely and she fails to provide a valid procedural basis for bringing this motion, the court denies the motion to grant leave to file a demurrer.

CONCLUSION and ORDER

Motion is denied.

Clerk of the Court to give notice.